

## Calendar Line 7

**Case Name:** *David Green v. Yelena Green et al.*

**Case No.:** 25CV466337

### I. BACKGROUND

On May 22, 2025, plaintiff David M. Green (“Plaintiff”) filed a judicial form complaint (“Form Complaint”) against defendants Yelena Green (“Yelena”) and Dmitry Green (“Dmitry”) (collectively, “Defendants”).<sup>2</sup>

The Form Complaint contains the following, limited information: 1) it is an unlimited civil case; 2) the action is subject to Civil Code section 1812.10; 3) the subject incident took place in Saratoga, CA; 4) Plaintiff is seeking injunctive or equitable relief; and 5) Plaintiff alleges that Defendants took property and have yet to return it. There are no additional allegations or exhibits attached to the Form Complaint.

On June 17, 2025, Yelena, appearing in pro per,<sup>3</sup> filed a motion labeled as a Motion to Dismiss directed at the Form Complaint. Yelena is now represented by counsel and apparently intends to go forward with the motion filed by Yelena. On October 8, 2025, Plaintiff filed a response to the motion.

### II. PROCEDURAL ISSUES ON MOTION TO DISMISS

As an initial matter, the Court addresses the process of moving to dismiss an action. “The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only where it complies with the requirements for a motion for summary judgment.” (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.) Here, Yelena’s motion does not comply with any of the procedural requirements for a motion for summary judgment. With that said, “the motion may be treated as a nonstatutory motion for judgment on the pleadings. Such a motion may be granted when the complaint fails to state facts sufficient to constitute a cause of action.” (*Id.* at p. 5.) Furthermore, the Court is authorized by statute to grant judgment on the pleadings on its own motion. (See Code Civ. Proc., § 438, subd. (b)(2).)

Accordingly, the Court must treat Yelena’s motion to dismiss as a motion for judgment on the pleadings. Further, as courts do not consider extrinsic evidence on pleading motions, it must, if anything, instead treat Yelena’s proffered evidence as a request for judicial notice.

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<sup>2</sup> The court refers to the parties, who share the same last name, by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

<sup>3</sup> “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 [internal citations omitted].)

With that said, Plaintiff filed an amended form complaint on October 20, 2025. Therefore, a motion for judgment on the pleadings is MOOT. (See *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054, quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884 [“The filing of [an] amended complaint render[s] [a] demurrer moot since ‘an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.’”].)

### III. CONCLUSION

The motion to dismiss, which the Court treats as a motion for judgment on the pleadings, is MOOT and is OFF CALENDAR.

The Court will prepare the final order.

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